

transaction which exceeds \$50,000, and the award to the lowest responsible and bidder of award is made; and

HEREAS, on March 20, 2026, the City issued an advertisement inviting construction the Project on iSupplier, the Bids/Contracts webpage of the City's website, and in various papers; and

HEREAS, on April 30, 2026, after a competitive bidding process, the City Clerk three bids for the Project; and

HEREAS, the bids remain valid for award at the time of Council action pursuant to the documents on file with the Capital Contracts Division of Oakland Public Works; and

HEREAS, the bids were as follows: Bay Cities Paving and Grading, Inc. (\$20,36.10); McGuire and Hester (\$20,881,650.00); and A&B Construction (\$20,34.00); and

HEREAS, McGuire and Hester is deemed the lowest responsible and responsive bidder for the Project with a bid of \$20,881,650.00, and said bid is compliant with the City's Equal Opportunity Ordinance (EBO) and meets the Federal Disadvantaged Business Enterprise (DBE) certification requirements; and

HEREAS, the City received a bid protest from Bay Cities Paving and Grading, Inc. for the identification of local trucking and suppliers, and after review by the Oakland Public Works Capital Contracts Division, the protest was denied and the bid evaluation upheld;

HEREAS, the City Council finds and determines based on the representations set forth in the Administrator's report accompanying this Resolution that the construction contract set forth hereunder is temporary in nature; and

HEREAS, the City Council finds and determines that the performance of this contract will not result in the loss of employment or salary by any person having permanent status in the City's service; and

HEREAS, the City Council finds and determines that the City lacks the equipment and personnel to perform the necessary work, that the performance of this contract is in the public interest because of economy or better performance and that this contract is of a professional, technical nature; and

HEREAS, the Project is exempt from California Environmental Quality Act (CEQA) pursuant to CEQA Guidelines Sections 21080.25(b) (Pedestrian and Bicycle), 15301(c) (Existing Highways and Streets), 15302(c) (Replacement or Reconstruction), 15303(d) (Small Tracts) and 15304(h) (minor alterations to land); each of the above exemptions provides a sufficient independent basis for CEQA compliance, and the City filed a Notice of Exemption with the Contra Costa County and the Office of Planning and Research's State Clearing House on March 1, 2026;